

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

JULIAN DOUGLAS and SAHEL GREEN,

Plaintiffs,

-against-

**CITY OF NEW YORK; OFFICER NICHOLAS NEVE,
DETECTIVE DANIEL GALLAGHER, DETECTIVE
MICHAEL GAIN, DETECTIVE DONNELL MYERS,
SERGEANT DIEGO VIVAR, DETECTIVE STEPHEN
LALCHAN, LIEUTENANT CHRISTOPHER GUIFFRE,
DETECTIVE KEITH ERHART, DETECTIVE ANTHONY
FARANDA, DETECTIVE PATRICK ROACH, DETECTIVE
BARRY BROWN, DETECTIVE ROBERT EDWIN,
DETECTIVE KEITH WELZ, JOHN and JANE DOE 1 through
10, individually (the names John and Jane Doe being fictitious,
as the true names are presently unknown),**

Defendants.

SUMMONS

**Plaintiff designates
Queens County as the
place of trial.**

**The basis of venue is:
The county in which the
action arose per CPLR
504(3)**

**The cause of action
arose in Queens County
and is against the City
of New York**

To the above named Defendants:

**You are hereby summoned to answer the complaint in this action, and to serve a copy of
your answer, or, if the complaint is not served with this summons, to serve a notice of appearance
on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the
day of service, where service is made by delivery upon you personally within the state, or, within
30 days after completion of service where service is made in any other manner. In case of your
failure to appear or answer, judgment will be taken against you by default for the relief demanded
in the complaint.**

**Dated: New York, NY
January 29, 2019**

Sincerely,



**Abraham Rubert-Schewel
Lord & Schewel PLLC**

233 Broadway, Suite 2220
New York, NY 10279
W: 212-964-0280
E: Schewel@nycivilrights.nyc

TO:

THE CITY OF NEW YORK
City Law Department
100 Church Street
New York, NY 10007

OFFICER NICHOLAS NEVE
One Police Plaza
New York, NY 10007

DETECTIVE MICHAEL GAINÉ
106th Detective Squad
103-53 101st Street
Queens, NY 718845-2260

DETECTIVE ANTHONY FARANDA
106th Detective Squad
103-53 101st Street
Queens, NY 718845-2260

DETECTIVE PATRICK ROACH
106th Detective Squad
103-53 101st Street
Queens, NY 718845-2260

DETECTIVE KEITH ERHART
113th Detective Squad
167-02 Baisley Blvd
Queens, NY
718712-2129

DETECTIVE DANIEL GALLAGHER
113th Detective Squad
167-02 Baisley Blvd
Queens, NY
718712-2129

LIEUTENANT CHRISTOPHER GUIFFRE
Queens North Homicide Squad
68-40 Austin Street
Queens, NY 11375

DETECTIVE BARRY BROWN
Queens North Homicide Squad
68-40 Austin Street
Queens, NY 11375

DETECTIVE ROBERT EDWIN
Queens North Homicide Squad
68-40 Austin Street
Queens, NY 11375

DETECTIVE KEITH WELZ
Queens North Homicide Squad
68-40 Austin Street
Queens, NY 11375

DETECTIVE DONNELL MYERS
105TH Precinct, Queens Gang Unit
92-08 222nd St
Queens Village, NY 11428

DETECTIVE STEPHEN LALCHAN
105TH Precinct, Queens Gang Unit
92-08 222nd St
Queens Village, NY 11428

SERGEANT DIEGO VIVAR
105TH Precinct, Queens Gang Unit
92-08 222nd St
Queens Village, NY 11428

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GUIFFRE, DETECTIVE KEITH ERHART, DETECTIVE
ANTHONY FARANDA, DETECTIVE PATRICK ROACH,
DETECTIVE BARRY BROWN, DETECTIVE ROBERT
EDWIN, DETECTIVE KEITH WELZ, JOHN and JANE DOE
1 through 10, individually (the names John and Jane Doe being
fictitious, as the true names are presently unknown),

Defendants.

**SECOND AMENDED
COMPLAINT**

Index No. 709207/2019

Plaintiffs JULIAN DOUGLAS and SAHEL GREEN, by their attorneys, ROB RICKNER
of RICKNER PLLC and ABRAHAM RUBERT-SCHEWEL of LORD & SCHEWEL PLLC,
allege the following:

PRELIMINARY STATEMENT

1. Plaintiffs Sahel Green (“Green”) and Julian Douglas (“Douglas”) collectively referred to as Plaintiffs, served 5.5 combined years in custody on Rikers Island after being wrongfully arrested and charged with a murder they did not commit.
2. Plaintiffs bring this action for compensatory damages and punitive damages pursuant to the common law of the State of New York, and for violations of their rights under the New York Constitution.

JURISDICTION AND VENUE

3. Jurisdiction lies in the Supreme Court of New York, County of Queens, as all Defendants resided in the State of New York, and the amount in controversy exceeds the jurisdictional amounts of all lower courts.
4. Plaintiffs complied with the requirements of New York General Municipal Law Section 50-H by serving a notice of claim on the City of New York dated June 1, 2018.
5. Green was deposed by the City of New York pursuant to 50-H on October 4, 2018.
6. Douglas was deposed by the City of New York pursuant to 50-H on October 4, 2018.
7. The City of New York has not adjusted this claim.
8. Venue is proper under CPLR § 504 in the County of Queens as it is the county where this cause of action arose.

JURY DEMAND

9. Plaintiffs respectfully demand a trial by jury of all issues in this matter.

THE PARTIES

10. Plaintiffs are residents of the of the State of New York.
11. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the New York City Police Department (“NYPD”), a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.
12. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York under New York law for any liability arising from conduct described herein.

13. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

14. Defendant Detective Daniel Gallagher (“Gallagher”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

15. Defendant Lieutenant Christopher Guiffre (“Guiffre”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

16. Defendant Detective Keith Erhart (“Erhart”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

17. Defendant Detective Anthony Faranda (“Faranda”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

18. Defendant Detective Patrick Roach (“Roach”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

19. Defendant Detective Barry Brown (“Brown”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

20. Defendant Detective Robert Edwin (“Edwin”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

21. Defendant Detective Michael Gaine (“Gaine”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

22. Defendant Detective Keith Welz (“Welz”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the

statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

23. Defendant Officer Nicholas Neve was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

24. Defendant Sergeant Diego Vivar was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

25. Defendant Detective Stephen Lalchan was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

26. Defendant Detective Donnell Myers was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

27. John and Jane Doe, Numbered 1 through 10, are employees of the City of New York, who were acting under color of law in their individual capacities, whose names are not currently known. However, they are employees or agents of the City of New York. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said persons in an amended pleading once the true names are known and (b) that the Law Department should immediately begin preparing the defense of any and all persons involved in the arrest and prosecution of Douglas and Green.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

The Murder of Leta Webb

28. On March 31, 2015, at approximately 1:45 a.m. Leta Webb ("Webb") was tragically murdered at her home in Jamaica, Queens.

29. Police from the 113th precinct immediately responded to the scene, but could identify no eyewitnesses to the murder.

30. Police located surveillance footage showing a white van driving towards Leta Webb's house.

31. The footage shows two people, who are unidentifiable, and wearing all black, exit the van and then return approximately one minute later.

32. The van then speeds away.

The Investigation Goes Cold

33. Detectives from the Queens Homicide Unit continued to investigate the murder through April 10, 2015.

34. These efforts yielded no suspects and no arrests.

Detective Nicholas Neve Procures a Facebook Photo of Julian Douglas and Khalil Cotman and Provides it to Detective Myers

35. On or around April 10, 2015, Nicholas Neve procured two Facebook photos.

36. One photo was of Julian Douglas.

37. The second photo was of Khalil Cotman.

38. Detective Neve sent these photos to Detective Myers to be shown to Queens Confidential Gang Informant # 11-000962.

A Queens Confidential Gang Informant is Coerced into Fabricating Evidence Implicating Julian Douglas

39. On April 10, 2015, Detective Myers, Detective Lalchan and Sergeant Vivar interviewed Queens Confidential Gang Informant # 11-000962.

40. Confidential Informant # 11-000962's true name is known to counsel for Douglas and Green, but will be referred to herein as "Witness 1".

41. Witness 1 was arrested and brought into the precinct because she had an open warrant for assault.

42. Detectives Myers, Lalchan and Sergeant Vivar threatened to take away Witness 1's daughter, S.G., if Witness 1 did not provide information related to Webb's murder.

43. Witness 1 informed Detective Myers, Detective Lalchan and Sergeant Vivar that she had no information on the murder.

44. Witness 1, however, agreed to fabricate evidence to assist the detectives if they did not arrest her on outstanding warrants, and let her keep custody of her daughter.

45. Witness 1, on April 10, 2015, fabricated a statement, with encouragement, and assistance, from Detectives Myers, Lalchan and Sergeant Vivar, that she had overheard that Douglas was responsible for Webb's murder.

46. Witness 1 also falsely identified the photo of Julian Douglas as "Jah" and stated that she had heard "through word of mouth" that he was involved in the murder of the Leta Webb.

47. Witness 1 provided an address to the Detectives for Jah; this address was not the address where Julian Douglas resided at this time.

48. Witness 1 also falsely identified the photo of Khalil Cotman as "Par Wezzy" and stated that he was also present during the homicide.

49. Khalil Cotman was never arrested or charged with any crime in connection with this incident.

50. Detectives Myers, Lalchan and Sergeant Vivar knew this information was fabricated to prevent the detectives from taking away Witness 1's daughter, or other penal consequences.

Detective Neve Provides the Facebook Photos to Detectives Gaine and Wellz

51. On April 12, 2015, Detective Neve provided the Facebook Photos to Detectives Gaine and Wellz.

52. Detective Neve informed Detectives Gaine and Wellz that he had received these photos from a confidential informant.

53. Detective Neve informed Detectives Gaine and Wellz that the confidential informant had stated that the photos were of a person named "Jah" who was responsible for the homicide.

54. Detectives Wellz and Gain passed this information and the Facebook photos on to Detective Faranda.

Witness 1 is again Coerced into Fabricating Evidence Implicating Douglas and now Green

55. On April 22, 2015, Detective Gallagher along with Detective Erhart, Detective Faranda, and Detective Roach, met with Witness 1 at the 106th precinct.

56. The surveillance video showed two suspects approaching Webb's house prior to the murder.

57. The Detectives had eliminated Khalil Cotman as a suspect, but knew they needed an additional accomplice to the murder.

58. Detectives Gallagher, Erhart, Faranda, and Roach again threatened to take away S.G. if Witness 1 did not further fabricate evidence against Douglas and now Green.

59. Witness 1 gave a fabricated statement implicating Douglas and now Green in the murder of Webb.

60. Witness 1 stated that she was at the house of a "crackhead" the day after the murder.

61. This time, Witness 1 claimed, that at the house of the "crackhead", she spoke directly to Jah who *personally informed her* that he had shot and killed Leta Webb.

62. Previously, on April 10, 2015, Witness 1 claimed that she had only heard that Jah was involved in the homicide *through word of mouth*.

63. Witness 1 also claimed that, when at the house of the "crackhead", she overheard that Green was involved in the murder.

64. Witness 1 claimed that she saw Green stash the murder weapon, a revolver, in the second level of the house.

65. Witness 1 made no statements on April 22, 2015, about Khalil Cotman's involvement in the murder.

66. Detectives Faranda, Gallagher, Erhart and Roach knew Witness 1's statements implicating Douglas and Green were fabricated.

67. Witness 1's statement was the sole evidence connecting Douglas and Green to the Webb murder.

68. On April 23, 2015, one day after Witness 1's second statement, arrest warrants were issued for Douglas and Green.

No Forensic or Other Evidence Yielded any Connection to Julian Douglas or Sahel Green

69. No DNA connected Douglas or Green to the murder.

70. No fingerprints connected Douglas or Green to the murder.

71. No murder weapon connected Douglas or Green to the murder.

72. No location data connected Douglas or Green to the murder.

73. No video footage connected Douglas or Green to the murder.

74. No witnesses, other than Witness 1, connected Douglas or Green to the murder.

Queens Detectives Knew Witness 1 Was Vulnerable and Inherently Unreliable

75. At the time Witness 1 made the fabricated statements she had a teenage daughter.

76. She had a long-term drug addiction.

77. She had two active Bronx warrants.

78. She had an active Queens warrant.

79. She had an active New Jersey warrant for a felony fraud charge, which sought her extradition.

80. She had a prior conviction for assault.

81. Detective Gallagher along with Detective Erhart, Detective Faranda, Detective Welz,

Detective Gaine, Officer Nicholas Neve, and Detective Roach were aware of all of the above issues effecting Witness 1's credibility.

82. They used Witness 1's criminal exposure, and the threat of losing her daughter, as leverage to secure a fabricated statement from Witness 1.

Douglas is Arrested and Denied Bail

83. On April 24, 2015, Douglas was arrested at home for an alleged probation violation.

84. He was interviewed at the 113th precinct by Detectives Gallagher, Galasso and Brown.

85. Douglas repeatedly denied any involvement in the Webb murder.

86. Detectives searched Douglas's home on April 24, 2015, for evidence related to the Webb murder.

87. The search warrant for Douglas's home specifically sought a revolver and black Prada sneakers.

88. The search yielded neither item, nor any other evidence related to the Webb murder.

89. Douglas, on April 24, 2015, was arraigned and charged with the murder of Webb.

90. Douglas was charged under an acting-in concert theory with Green.

91. Based in large part on his alleged confession, which was fabricated by Witness 1 and the Detectives, he was remanded and denied bail.

Green is Interrogated in Schenectady, New York

92. On April 25, 2015, Green was interrogated by Detective Brown in Schenectady, New York.

93. Green, at the time of the interrogation, was in the custody of the Schenectady police department on unrelated charges.

94. Green stated to Detective Brown that he had been in Schenectady at the time of the murder of Leta Webb.

95. He denied any involvement in the murder.

96. Two cell phones were taken from Green's possession and kept by Detective Brown.

IP Address Location Data Proves Green Did Not Commit the Murder

97. On June 4, 2015, Queens Judge Ernest Hart granted a search warrant for Douglas and Green's Facebook content and IP location addresses.

98. This search warrant was granted based on an affidavit, and oral statements, made by Detective Gallagher.

99. The Facebook information was returnable to the NYPD and to the QDA.

100. This information was returned to the NYPD and QDA on or about June 22, 2015.

101. IP address location data placed Green in Schenectady, New York, at the time of the murder.

102. This Facebook IP location data proves unequivocally that Witness 1 was unreliable and that she was not providing accurate information, but Detective Gallagher along with Detective Erhart, Detective Faranda, Detective Welz, Detective Gaine, Officer Nicholas Neve, and Detective Roach still initiated and continued the prosecution of Green and Douglas based on Witness 1's fabricated statement.

Green and Douglas are Indicted

103. On or about September 11, 2015, Douglas and Green are indicted for Webb's murder.

104. No exculpatory evidence was presented to the grand jury.

Green is Transferred to NYC Custody

105. On October 6, 2015, Green was transferred from Schenectady to Queens Central Booking by Detective Gallagher.

106. On October 6, 2015, Green is arraigned and charged with the murder of Webb.

107. Green was charged under an acting-in concert theory with Douglas.

108. Green is denied bail, based primarily on Witness 1's fabricated statement.

Witness 1, Further Exonerating Plaintiffs, States Green and Douglas Did not Murder Webb

109. On June 14, 2017, the Queens District Attorney ("QDA") made a *Brady* disclosure to Green and Douglas.

110. The QDA revealed that Witness 1 had changed her prior statement.

111. The QDA did not reveal the date on which Witness 1 changed her statement.

112. The *Brady* disclosure states that Witness 1 informed the QDA that Green and Douglas did not kill Webb.

113. Witness 1 states that she was in a park in May of 2015 and overheard an unnamed individual, not Green or Douglas, state that he had killed Webb.

114. Green and Douglas were both already incarcerated in May of 2015.

115. While this was not disclosed to Green and Douglas' defense counsel until 2017, Detective Gallagher along with Detective Erhart, Detective Faranda, Detective Welz, Detective Gaine, Officer Nicholas Neve and Detective Roach all knew, before 2017, that Witness 1 had effectively retracted her pre-indictment statements about Green and Douglas.

The NYPD Never Discloses the Facebook *Brady* IP Address Location Data

116. On or about June 22, 2015, the NYPD received Facebook IP address location data.

117. This location data exonerated Green and Douglas.

118. This location data, although received before Green and Douglas were indicted, was not presented to the grand jury.

119. In the QDA's Response to Defendant's Omnibus Motion, filed April 12, 2016, Queens ADA Jared Rosenblatt stated that the QDA was "not now in possession of, or aware of, any

[*Brady*] Material. The People acknowledge the continuing obligation to provide *Brady* material should the same become known to us.”

120. It is unclear when, if ever, the NYPD turned the Facebook IP location data over to the QDA.

121. The Facebook IP address location data was *never* disclosed to Green and Douglas or their attorneys.

The Case is Dismissed and Green and Douglas are Released from Custody

122. On March 9, 2018, at recommendation of the QDA, the case was dismissed and sealed.

123. On March 9, 2018, Green and Douglas were released from custody.

INJURIES AND DAMAGES

124. This action seeks damages on behalf of Plaintiffs for the loss of liberty, extraordinary emotional pain and suffering, and injuries to his person, that Plaintiffs were forced to endure as a consequence of Defendants’ decidedly wrongful actions.

125. As a result of Plaintiffs wrongful arrest and unjust imprisonment, despite their actual innocence of the crime, Plaintiffs were incarcerated for a combined 5.5 years.

126. Plaintiffs have suffered, and continue to suffer, severe and ongoing damages, specifically including lost educational and professional, physical pain and injuries, inadequate medical care, serious psychological and emotional damage, loss of familial relationships, and loss of quality of life.

127. The acts and omissions of Defendants entitle Plaintiffs to compensatory and punitive damages.

FIRST CLAIM:

MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW (Against All Defendants)

128. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs as if fully set forth herein, and further allege as follows.

129. The Individual Detectives caused the commencement and continuance of criminal proceedings against Plaintiffs.

130. There was no probable cause for criminal proceedings against Douglas or Green for the murder of Webb and the Individual Detectives knew or should have known as much.

131. The Individual Detectives acted with actual malice.

132. This is evidenced through the fabricated statement they procured from Witness 1 through coercive tactics.

133. The criminal proceedings against Green and Douglas terminated in their favor when all charges against them were dismissed on March 9, 2018.

134. Defendant the City of New York is liable under the doctrine of *respondeat superior* for the unlawful conduct of its employees, the Individual Detectives.

SECOND CLAIM:

INTENTIONAL, RECKLESS, and/or NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS UNDER NEW YORK STATE LAW (Against All Defendants)

135. Plaintiffs repeat and reallege each and every allegation contained in the preceding paragraphs as if fully set forth herein, and further alleges as follows.

136. The conduct of the Individual Detectives in deliberately causing, and/or recklessly, and/or negligently disregarding the risk of wrongful arrest, prosecution, and incarceration of Plaintiffs by, among other things, (i) fabricating evidence, (ii) withholding exculpatory material and impeachment evidence, (iii) lying to prosecutors, the court, the defense, and the jury, and (iv) causing Douglas and Green to be maliciously prosecuted for

crimes he did not commit was extreme and outrageous and directly and proximately caused the grievous injuries and damages set forth herein.

137. The Individual Detectives actions were in violation of clearly established law, and no reasonable police officer in 2015 or thereafter would have believed the actions of the Individual Detectives to be reasonable or lawful.

138. Defendant the City of New York is liable under the doctrine of *respondeat superior* for the unlawful conduct of its employees, the Individual Detectives.

THIRD CLAIM:

VIOLATION OF THE NEW YORK STATE CONSITUTION (Against All Defendants)

139. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

140. By virtue of the aforementioned acts, the Individual Detectives are liable to Plaintiffs for violating their rights to due process under Article I, § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

141. Defendant City of New York is liable for these violations of the New York State Constitution under the principle of *respondeat superior*.

142. Consequently, the Individual Detectives and the City of New York are liable to Plaintiff for compensatory and punitive damages

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

(a) Compensatory damages against all defendants, jointly and severally;

- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: January 29, 2020
New York, New York

/s/ Rob Rickner
Rob Rickner
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/s/ Abraham Rubert-Schewel
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ATTORNEY'S VERIFICATION

Abraham Rubert-Schewel, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiffs Julian Douglas and Sahel Green I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
January 29, 2020



Abraham Rubert-Schewel
Counsel for Plaintiffs